

**IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA**

Case No.: 2025/137857

In the matter between:

PETER ANDREW FAUCITT
(Identity Number: 520430 5708 18 5)

APPLICANT

And

JACQUELINE FAUCITT
(Identity Number: 570607 0898 18 1)

RESPONDENT

IN RE:

PETER ANDREW FAUCITT
(Identity Number: 520430 5708 18 5)

APPLICANT

And

JACQUELINE FAUCITT
(Identity Number: 570607 0898 18 1)

FIRST RESPONDENT

DANIEL JAMES FAUCITT
(Identity Number: 820715 5300 18 2)

SECOND RESPONDENT

**REGIMA WORLDWIDE DISTRIBUTION
(PTY) LTD**
(Registration Number: 2011/005722/07)

THIRD RESPONDENT

REGIMA SKIN TREATMENTS CC
(Registration Number: 1992/005371/23)

FOURTH RESPONDENT

VILLA VIA ARCADIA NO 2 CC
(Registration Number: 1996/004451/23)

FIFTH RESPONDENT

STRATEGIC LOGISTICS CC
(Registration Number: 2008/136496/23)

SIXTH RESPONDENT

**FIRSTRAND BANK LTD t/a FIRST
NATIONAL BANK**

SEVENTH RESPONDENT

ABSA BANK LIMITED

EIGHTH RESPONDENT

**THE COMPANIES AND INTELLECTUAL
PROPERTY COMMISSION**

NINTH RESPONDENT

**NOTICE OF APPLICATION
FOR LEAVE TO APPEAL**

TAKE NOTICE THAT, on a date and at a time to be determined by the Registrar of the above Honourable Court, the applicant intends to apply for Leave to Appeal, to the Full Bench of the above Honourable Court, *alternatively* the Supreme Court of Appeal, against the whole of the Judgment and Order — on the grounds set out in this Notice — of the Honourable Justice Labuschagne, handed down in the above Honourable Court on 26 March 2026.

AND TAKE NOTICE THAT this Application for Leave to Appeal is premised on the Appeal having a reasonable prospect of success; and that there are compelling reasons why the Appeal should be heard as envisaged at Section 17 of the Superior Courts, 10 of 2013, as set out in this Notice of Application for Leave to Appeal.

TAKE FURTHER NOTICE that the application for Leave to Appeal is premised on, save for as aforesaid, the fact that another court would come to a different conclusion.

AND TAKE NOTICE THAT this Application for Leave to Appeal is brought on the following mixed grounds of law and fact, in that the Court erred, *alternatively* mis-directed itself in the following respects, and for the compelling reasons set out herein:

1.

- 1.1 By failing to grant the application.
- 1.2 By dismissing the application.
- 1.3 By failing to apply the correct test to contempt of Court proceedings, as set out in *Fakie NO v CCII Systems (Pty) Ltd [2006] ZASCA 52; 2006 (4) SA 326 (SCA)* at para 42.
- 1.4 By failing to recognise that, once the existence of the order, knowledge thereof, and non-compliance were established, an evidential burden shifted to the Respondent to raise a reasonable doubt as to wilfulness and *mala fides*.
- 1.5 By having incorrectly placed reliance on the *Plascon-Evans* test, as opposed to following the aforesaid test for contempt proceedings.

- 1.6 By having, in relying on the *Plason-Evans* test, failed to find that the relief sought should be granted, in circumstances where:

*“... A final order, whether it be an interdict or some other form of relief, may be granted if those facts averred in the applicant’s affidavits, which have been admitted by the respondent, together with the facts alleged by the respondent, justify such an order. The power of the court to give such final relief on the papers before is not confined to such a situation. In certain instances, the denial by respondent of a fact alleged by the applicant may not be such as to raise a real, genuine or bona fide dispute of fact. ...”*¹

- 1.7 By incorrectly requiring the Applicant to establish wilfulness on the Respondent's version.
- 1.8 By having failed to find the respondent's version to be ‘*far-fetched and untenable*’ and that the applicant's version should be accepted despite the *Plascon-Evans* Test.
- 1.9 By having incorrectly placed reliance on the *Plascon-Evans* test as determinative of the enquiry.

1 ¹ *Plascon-Evans Paints Limited v Van Riebeeck Paints (Pty) Ltd* 1984 (3) SA 623 (A) at 635 H – I

- 1.10 By misdirecting itself in holding that the applicant must establish contempt “*on the version of the first respondent*”.
- 1.11 By conflating the *Plascon-Evans* rule with the *Fakie* framework.
- 1.12 By failing to reject the Respondent’s version where it was not *bona fide* or was far-fetched and untenable.
- 1.13 By failing to properly interpret clause 2.5 of the order granted on 19 August 2025.
- 1.14 By failing to recognise that the order:
- i. is broad and prohibitory in nature;
 - ii. restrains any dealing with the business, administration, employees, partners or clientele;
 - iii. extends to conduct capable of causing prejudice, and
 - iv. does not require proof of actual prejudice;
- 1.15 By adopting an unduly narrow interpretation of the order, limiting its operation to overt or direct interference.

- 1.16 By failing to recognise that the order prohibits not only formal control, but also practical and operational interference.
- 1.17 By having failed to find that the order of this Honourable Court, namely the order of 19 August 2025, has not been breached.
- 1.18 By having failed to find that the respondent dealt with the business and administration of the entities in a manner capable of causing prejudice, on her own version.
- 1.19 By failing to find that the Respondent retained and exercised practical control over critical aspects of the business, including:
- i. stock and inventory;
 - ii. order fulfilment processes;
 - iii. training operations;
 - iv. employee participation and conduct within the business;
- 1.20 By failing to recognise that the order prohibits not only formal control, but also practical and operational interference

- 1.21 By having failed to find that the respondent acted to the prejudice of the entities, employees, clientele and partners.
- 1.22 By failing to find that interference with stock access, stock-taking and stock release constituted “dealing with the business and administration” as prohibited by the above order.
- 1.23 By failing to find that on the respondents own version the restriction or delay in stock release; the unilateral control over quantities of stock released; the disruption of stock-taking processes constituted non-compliance with the order, and prejudice in terms thereof.
- 1.24 By placing undue emphasis on the fact that stock was ultimately delivered, rather than considering whether the Respondent interfered with the process.
- 1.25 By failing to find that the respondent’s admitted conduct at training sessions constituted prohibited dealing with employees; business operations and clientele.
- 1.26 By failing to find that: instructing individuals to leave training sessions disrupting training processes; and making statements undermining the legitimacy of training constituted conduct capable of causing prejudice as prohibited by the above order.

- 1.27 By accepting the respondent's admission and explanation for such conduct without properly assessing its lawfulness in light of the order, properly interpreted.
- 1.28 By failing to find that the respondent: continued to involve herself in operational decision-making; exercised authority over business processes and asserted control over training certification and operations contrary to the above order properly interpreted.
- 1.29 By failing to recognise that such admitted conduct constitutes "dealing with the business" within the meaning of the order.
- 1.30 By considering each incident of non-compliance in isolation.
- 1.31 By failing to recognise that the respondent's conduct constituted a pattern of continued interference.
- 1.32 By failing to draw the inference that such a pattern demonstrated ongoing non-compliance.
- 1.33 By having ignored the papers filed of record (with due regard to paragraph 5 of the judgement), in circumstances where the applicant specifically brings the application with due reliance on the papers previously filed of record.

- 1.34 By having placed reliance on the confirmatory affidavits of the Mphande's, in circumstances where their truthfulness and identities are brought into question by the applicant (their character and intentions having been brought into question).
- 1.35 By having found that there was no interference with the stock order made by the entities, in circumstances where the evidence confirms that there was.
- 1.36 By having, incorrectly or by having misdirected itself, found that the *onus* to criminal proceedings applied to that of civil contempt.
- 1.37 By having found that the applicant is to establish contempt on the version of the applicant, in circumstances where it is *trite* that the applicant need only establish the grounds for contempt, whereafter the *onus* shifts to the respondent.
- 1.38 By failing to determine whether the Respondent discharged the evidential burden resting upon her.
- 1.39 By having found that there was no wilfulness on the part of the respondent, in her breach of the order.

- 1.40 By drawing a connection between the divorce proceedings and the present application, which pertains to whether or not the respondent was and/or is in contempt of the order of this Honourable Court.
- 1.41 By taking into account irrelevant considerations relating to alleged litigation strategies.
- 1.42 By awarding punitive costs.
- 1.43 By doing so in circumstances where no abuse of process was established and the application was aimed at obtaining *bona fide* and legitimate relief.

2.

- 2.1 The application for Leave to Appeal raises several issues, and there are, with respect, compelling reasons why Leave to Appeal should be granted.
- 2.2 The reasons compelling the granting of Leave to Appeal, and for the Appeal to be heard, although not limited thereto, pertain to reliance being placed on challenged 'evidence', the incorrect tests having been applied in relation to civil contempt (in particular the relationship between the '*Fakie*' test and *Plascon-Evans* test), the correct approach to

the interpretation of court orders, and an incorrect conclusion having been drawn therefrom.

2.3 It is submitted further, with respect, that there is also a reasonable prospect that another court will arrive at a different conclusion.

2.4 The Court is implored accordingly to grant Leave to Appeal to the Full Court, *alternatively* the Supreme Court of Appeal.

WHEREFORE, the applicant submits with respect that an Appeal will have a reasonable prospect of success, and that there are compelling reasons why Leave to Appeal should be granted, more so in circumstances where another Court would come to a different conclusion.

In the premises the applicant moves for an order that Leave to Appeal be granted, and that the costs hereof shall be the costs in the Appeal.

TAKE FURTHER NOTICE that the applicant reserves the right to supplement and/or amend this notice in due course or by argument.

KINDLY ENROLL THE MATTER FOR HEARING ACCORDINGLY

DATED AND SIGNED AT PRETORIA ON THE 30 DAY OF MARCH 2026.



ATTORNEYS FOR THE APPLICANT

OFFICE 12

GARSFONTEIN OFFICE PARK

645 JACQUELINE DRIVE

GARSFONTEIN

PRETORIA

TEL: 012 012 5067

FAX: 012 012 5068

EMAIL: keegan@elliottattorneys.co.za

REF: KRE/KF0019

TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT
PRETORIA

AND TO: BURGER HUYSER ATTORNEYS – BEDFORDVIEW INC
ATTORNEYS FOR THE RESPONDENT

45A FLORENCE AVENUE

BEDFORDVIEW

EMAIL: mari@burgerhuysersattorneys.co.za //

jretha@burgerhuysersattorneys.co.za //

tasmia@burgerhuysersattorneys.co.za

TEL : 011 201 7190

REF : MK//BFV/1316